

25VECV04592 25VECV04592

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV04592 Hearing Date: July 21, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

NAREK BAGIRIAN, an individual,

Plaintiff,

vs.

AMERICAN

HONDA MOTOR CO., INC., a California Corporation, and DOES 1 through 10,
inclusive,

Defendant.

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CASE NO.: 25VECV04592

ORDER

GRANTING IN PART PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO FORM
INTERROGATORIES

I.

BACKGROUND

This is a lemon law
action. Plaintiff Narek Bagirian ("Plaintiff") alleges Defendant American Honda
Motor Co., Inc. ("Defendant") manufactured Plaintiff's 2024 Honda Accord which
was delivered with and developed serious defects and nonconformities to
warranty. Plaintiff moves to compel further responses to his Form
Interrogatories ("FROGs") Set One.

II.

PROCEDURAL

HISTORY

On August 15,
2025, Plaintiff filed a Complaint alleging (1) Violation of Song-Beverly Act -
Breach of Express Warranty; (2) Violation of Song-Beverly Act - Breach of
Implied Warranty; and (3) Violation of The Song-Beverly Act Section 1793.2(b).

On September

25, 2025, Defendant filed an Answer.

On June 8,
2026, Plaintiff filed the instant Motion to Compel Further.

On July 8,
2026, Defendant filed an Opposition.

On July 14,
2026, Plaintiff filed a Reply.

III.

LEGAL STANDARD

A propounding party may move for an order compelling further responses to interrogatories if the responding party produced an evasive or incomplete answer or a meritless or overly general objection in response to an interrogatory. (See Code Civ. Proc. § 2030.300(a).) A motion to compel further responses to interrogatories lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (See *id.* at § 2030.300.)² The moving party must also include reasons why further answers should be ordered: legal or factual arguments why the answers given were incomplete or nonresponsive, or the objections invalid.³ (See Rules of Court, rule 3.1345(c).)

However, where a timely motion to has been filed, “the burden is on the responding party to justify any objection or failure to fully answer the interrogatories.”⁴ (Weil & Brown, Cal. Prac. Guide: Civil Pro. Before Trial (The Rutter Group 2017) ¶ 8:1179.)⁵ “The ruling usually is based on consideration of the following factors: [¶] the relationship of the information sought to the issues framed in the pleadings; [¶] the likelihood that disclosure will be of practical benefit to the party seeking discovery; [¶] the burden or expense likely to be encountered by the responding party in furnishing the information sought.”⁶ (Columbia Broadcasting System, Inc. v. Superior Court (Rolfe) (1968) 263 Cal.App.2d 12, 19.)

IV.

MEET AND CONFER

Before

bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (See Code Civ. Proc. §§ 2016.040, 2031.310(b)(2), 2030.300(b), 2033.290(b).) Failure to make such attempt constitutes “misuse of discovery process”. (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].)

“A reasonable

and good-faith attempt at informal resolution...requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) In evaluating whether a meet and confer was reasonable and in good faith, “[a]n evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-94.)

The Court

finds Plaintiff did not satisfy its statutory obligation to meet and confer in person or by telephone or videoconference. Here, Plaintiff’s counsel attests he sent a meet and confer letter in response to Defendant’s interrogatory responses. (See Declaration of Sepehr Daghighian filed June 8, 2026, ¶ 14.) Based on recent amendments to the discovery statutes at the beginning of this year, simply writing to opposing counsel is insufficient. The Court has decided to inform counsel about this recent change for the year since this change took effect. However, after it has been effect for a year, the Court will likely deny discovery motions outright if counsel fail to comply. As a result, the Court will consider the merits of Plaintiff’s Motion but reminds counsel to comply with its statutory meet and confer obligations in a substantively meaningful way or risk the denial of relief in the future.

V.

ANALYSIS

A.

No. 15.1

“Identify

each denial of a material allegation and each special or affirmative defense in your pleadings and for each: (a) State all facts upon which you base the denial or special or affirmative defense; (b) State the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (c) Identify all DOCUMENTS and other tangible things that support your denial or special or affirmative defense, and stat the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT.” (Sep. Stmt. No. 15.1.)

Defendant

objects that this request is “vague, ambiguous, overly broad and asks for information protected by the attorney work-product doctrine or the attorney-client privilege. Subject to and without waiving these objections, AHM set forth its denials and affirmative defenses in its answer on file and in Plaintiff’s possession....AHM’s general denial and affirmative defenses were prepared by its attorneys and reflect their legal analysis.” (Id.)

Plaintiff contends

further response is warranted because the objections are meritless and this information is pertinent to this lemon law action. (See id.)

Defendant

argues its denials and affirmative defenses were drafted by counsel and therefore subject to the attorney work product privilege. (See Def. Sep. Stmt. No. 15.1.)

In reply,

Plaintiff asserts Defendant’s response fails to individually address its affirmative defenses. (See Reply at 1:28-2:11.)

The Court

finds further response to No. 15.1 is warranted. The Court overrules Defendant’s objections as they are inapplicable. This request seeks supporting facts, which should be pled in Defendant’s Answer regardless. (See California Trust Co. v. Gustason (1940) 15 Cal.2d 268, 273 [the answer must state facts on which the defense is founded]; Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550 [ultimate facts are generally sufficient, rather than evidentiary matters or legal conclusions].) This request does not seek any information that reflects an attorney’s impressions, opinions, or legal theories. It appropriately requests information concerning supporting facts and

the identification of people or documents that possess knowledge of or contain those facts. (See e.g. DISC-001 Official Form Interrogatories No. 15 [interrogatory requesting defendant to explain the basis for affirmative defenses].) Accordingly, the Court finds further response is warranted and as to FROG No. 15.1.

B.

No. 17.1

"Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission:

(a) state the number of the request;

(b) state all facts upon which you base your response;

(c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and

(d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing." (Sep. Stmt. No. 17.1.)

Defendant

objects to each subpart on grounds that it is vague, overly broad, burdensome, seeks information that is protected by the attorney-client and work product privileges, prematurely seeks discovery of information to be provided by an expert witness, and seeks confidential information. (See id.) Defendant also responds with respect to Requests for Admission ("RFA") Nos. 5, 9-14, 21, 30-32, 34, 39, 15-17, 22, 33, and 36-38. (See id.) As to Nos. 9-14, 21, 30-32, 34, and 39, Defendant responds "(b)-(d) See AHM's objections to Request Nos. 9-14, 21, 30-32, 34, and 39, which are incorporated herein by reference." (Id.)

Plaintiff incorporates

its reasons for compelling further response from No. 15.1 here. (See *id.*)

Defendant

argues its response provides substantive, request specific information for each RFA not admitted unqualifiedly. (See Def.'s Sep. Stmt. No. 17.1.) Defendant argues as to Nos. 9-14, 21, 30-32, 34, and 39, it properly incorporated its objections which Plaintiff didn't challenge in a separate motion to compel further. (See *id.*)

In

reply, Plaintiff argues Defendant failed to respond to No. 17.1(b) through (d) in connection with several of the RFAs identified. (See Reply at 3:23-24.) Plaintiff contends Defendant improperly incorporated objections to a valid interrogatory. Plaintiff also argues it is appropriate to challenge Defendant's response to No. 17.1 without having moved to compel further responses to Defendant's RFA responses. (See *id.*, at 4:1-4.)

The Court

finds further response to No. 17.1 is not warranted. As Plaintiff's separate statement does not identify deficiencies with respect to any RFA answered under No. 17.1, the Court turns to Plaintiff's reply, which appears to only address Defendant's response with respect to RFA Nos. 9-14, 21, 30-32, 34, and 39. Defendant served objection only responses to these RFA. (See Daghighian Decl., ¶ 13, Ex. E.) The Court agrees with Defendant that Plaintiff would have had to first challenge the RFA objection only responses in a separate motion to compel further. Otherwise, the Court cannot find Defendant's response to No. 17.1 (b) through (d) as to RFA Nos. 9-14, 21, 30-32, 34, and 39 is deficient, as these subparts would not be applicable to objection only responses.

Thus, the

Court DENIES the Motion FROGs as to No. 17.1.

VI.

CONCLUSION

Based on the

foregoing, the Court GRANTS IN PART Plaintiff's Motion FROGs as to 15.1 and DENIES it as to No. 17.1. Defendant is ordered to provide code compliant supplemental responses on or before August 7, 2026.

IT

IS SO ORDERED.

DATED: July 21, 2026

Hon. Michael R. Amerian

Judge,

Superior Court